EDMUND TASIANA MUTALE
Versus
PATRICIA NYIKADZINO
And
BENJAMIN GANYIWA
And
LAZARUS MURENGWA
And
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
CHIRAWU-MUGOMBA J
Harare, 18, 26. 27 March, 13 April 2026.

L. Matapura, for the applicant
M.S Nyanoka, for the 1st and 2nd respondents

OPPOSED COURT APPLICATION

CHIRAWU-MUGOMBA J: Since the advent of the land reform programme in Zimbabwe, land has been allocated through various legal instruments by way of lease agreements and offer letters. This matter epitomises the contentious issues around inheritance of agricultural land under the A2 model that a deceased had been allocated during their lifetime through an offer letter culminating in a lease agreement. Although it was presented as an application for an interdict and eviction, the fundamental issue remains that of succession to such land at death of the lease or offer holder.

The matter on the face of it is seemingly simple. One Stella Lilian Mauni Mutale (the deceased) passed away on the 3rd of September 2020. One Monica Marihwi was appointed executor testamentary to her estate under DR 2498/24 and was accordingly issued with letters of administration. She in turn through a power-of-attorney, had already appointed the applicant to act in her stead. The applicant avers that the first and second respondents are husband and wife. The applicant seeks an order declaring the deceased as represented by the executor as the legal holder of rights, title and interest in a certain piece of land situate in Chegutu called subdivision 62 of Railway 30, Chegutu (the property) in terms of an offer letter issued to the deceased by the then Minister of National Security, Lands, Land Reform and resettlement dated the 21st of October 2005. Additionally the applicant seeks an order declaring that the deceased had the right to occupy, use and enjoy transfer of the property in accordance with the lease granted to her, an order declaring that the legal beneficiaries of the deceased have the right of succession without interference and that the first to the third respondents are in illegal occupation of the property. Consequently the applicant seeks an order of eviction against the respondents and all those claiming occupation through them and that they be interdicted and barred from carrying out agricultural activities on the property. Costs of suit are sought on an attorney-client scale.

The basis of the claim is presented as one in which the deceased was the legal registered holder of rights, title and interest over the property in terms of an offer letter dated the 21st of October 2005 under the A2 Model. That the deceased took occupation since then of the property. On her demise, the applicant avers that the executor took control of the property and was granted rights to occupy and use it for the beneficiaries as per the last will and testament. Sometime in 2022, the first to the third respondents unlawfully took occupation and constructed illegal structures. They installed illegal workers and cultivated crops and raised livestock there. This was done without the consent of the executor. They are nothing more than illegal occupiers. The applicant approached the District Lands Office with the aim of having the respondents vacate but to no avail. A report to the Zimbabwe Republic Police did not result in any prosecution. The applicant has a direct and substantive interest in protecting assets of the estate. The requirements for an interdict have been

established. The beneficiaries have limited access to the property and essentially the respondents are unlawful occupiers.

In opposing the application, the first and second respondents aver as follows. They raise preliminarily that there are material disputes of fact that cannot be resolved on paper. This is based on the fact that the 1st respondent has a confirmation letter from the Ministry of Local Government, Rural and Urban Development dated the 15th of February 2011 for the same property. This letter is in the name of one Conrad Munemo. That the latter took occupation in 2011 and constructed a fowl run, farm house, staff quarters and boreholes. In addition, electricity was installed. The deceased was not in occupation at all that time. These two mutually destructive versions require ventilation through *viva voce* evidence. The matter also suffers from non-joinder of the Ministry of Lands, Agriculture, Fisheries, water and Rural Resettlements and that of Conrad Munemo who is the holder of a valid offer.

On the merits, they aver that the deceased is not the holder of any rights. These have since passed to Conrad Munemo who took occupation in 2011. He is the one that has effected developments and it is through a joint venture with him that the first and second respondents are in occupation.

Apart from contesting the merits of the preliminary issues raised, nothing much turns on the answering affidavit except emphasis on the fact that the respondents are in illegal occupation and use. The applicant also committed the cardinal sin of attaching annexures to the answering affidavit without leave of the court – see *Nashe Family Trust vs. Chiwara and ors,* 2018(2) ZLR 212 (H). Mr. *Matapura* rightly conceded the impropriety of such and as a result, the annexures to the answering affidavit were expunged from the record.

At the hearing, Mr. *Nyanoka,* for the first and second respondents indicated that he was persisting with the preliminary issues raised. I directed that the applicant's counsel be heard first and that he should also address the preliminary issues raised.

In addition to the heads of argument, Mr *Matapura* made the following submissions. The preliminary points have no merit. There is no dispute as to title of

the land. There is no dispute that the first and second respondents have no legal instrument to allow them to be on the property. No joint venture agreement with the consent of the relevant Minister has been attached. There is no need to join the Minister who issued a valid offer. There is a presumption of validity of the offer letter. The question of joinder is not supported. In any event, the rules specifically state that joinder or non-joinder does not affect a cause.

What the court is called upon to determine is a declaration of rights held by the deceased. Does the applicant hold real rights that would support granting of an interdict. The deceased held rights through an offer letter and that instrument is issued in terms of statute. The offer letter of the 21st of October 2005 was issued by the relevant authority reposed with authority to allocate land. The respondents have not dealt with that issue and neither is it disputed. They simply state that the title has been overtaken by events. Such does not take away title. That title can only be terminated by cancellation, revocation, termination by issuing authority or through the courts. In *casu,* this never occurred. The authorities state that the holder of an offer letter possesses a clear right. There is therefore no valid legal defence. What has been placed before the court is a confirmation letter issued by a district lands officer under the Minister of Local government. The letter is not issued to the first and second respondents. Assuming that Conrad Munemo had been given rights, these were not given to the first and second respondents. They are not privy to the offer. What is on record is an affidavit by Conrad Munemo which states that he surrendered the rights. And yet the letter unequivocally states that title must not be surrendered at all. The first and second respondents title is tainted as it is against public policy. There is no legal basis for the first and second respondent to use and occupy the land. The applicant has met all requirements of an interdict.

Per *contra* Mr. *Nyanoka* raised a further preliminary point. He submitted that where there is confusion between heading of application and contents in the founding affidavit, it is the latter that should dispose of the matter. In the applicant's founding affidavit, it is clear that what is sought is a *declaratur* and not an interdict. In the draft order, this is confirmed. The question is whether or not the founding affidavit is one for a *declaratur*. It is only after the court makes a declaration that if

convinced can issue an interdict and eviction. The requirements for a *declaratur* have not been met. The founding affidavit does not address all the requirements of a *declaratur.*

The test applied on material disputes of fact is self -explanatory. There is a dispute as to who came to the property when and what was constructed.

As for the interdict, If one pillar is not proved, the matter falls away. The applicant has failed to show a clear right. The applicant's mast has been cast on an offer letter and yet the first and second respondents also have an offer letter. Even if the applicant is in possession of the offer letter, there are certain structures on the property. The balance of convenience favours the one who is on the ground.

In rebuttal, Mr *Matapura* submitted as follows. The submission that the application is a *declaratur* has no merit. The application seeks the court to make a determination on the rights and thereafter the determination arising therefrom. The basis in terms of *locus standi* is in respect of a real and substantial interest. The first and second respondents are occupying the property unlawfully. Even if the court were to consider the application as one of a *declaratur*, the requirements of such is established. The founding affidavit sets out what an application is all about. Once a concession is made that only the Minister of Lands can issue an offer letter, the matter ends there. There is no contestation and thus no material disputes of fact. The right held by a 99- year lease is a clear right. It has not been terminated.

Let me now deal with the preliminary issues raised by the first and second respondents.

In, *Dube vs Murehwa and ors,* SC-68-21, it was held as follows,

> "With regard to this issue the first enquiry is to ascertain whether or not there is a real dispute of fact which could not be resolved without hearing evidence. In *Supa Plant Investments (Pvt) Ltd v Chidavaenzi* 2009 (2) ZLR 132(H) at 136 F-G, Makarau JP (as she then was) expressed the following sentiments:
>
> > "It is my view that it is not the number of times a denial is made or the vehemence with which a denial is made that will create a conflict of fact such as was referred to by MCNALLY J (as he then was) in *Masukusa v National Foods Ltd and Another* 1983 (1) ZLR 232 (H) and in all the other cases that have followed. A material dispute of fact arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

In my view, there are no material disputes of fact. The matter at hand is not a dispute about the validity of the titles held by the deceased or Conrad Munemo. It is clear from the evidence that what the deceased had was an offer letter issued by the then authorised Minister. On the other hand, what Conrad Munemo allegedly possesses is a confirmation of allocation that was not issued by the authorised Minister. The same applies to the contention that there is non-joinder of the Minister and Conrad Munemo. In my view, it is not a contestation of two offer letters.

I move to the issues at hand. While the application has been presented as one for an interdict, Mr. *Nyanoka* for the first and second respondents submitted with passion that what is before the court is an application for a *declaratur* disguised as one for an interdict. These issues are secondary. In my view what has to be determined first is whether or not the rights accruing from the offer letter are automatically transferrable to the estate of the deceased. Upon engagement on this issue with Mr. *Matapura* , he contended that the Supreme Court in the matter of *Chombo vs. Chombo,* SC-8-26 dealt with the issue to the effect that an offer letter confers real rights. The issue at hand in that matter related to the cancellation of a lease agreement and the matter was disposed of on the ground of unlawful and premature cancellation of the lease. In *Mashingaidze vs Mandigo and ors,* HH-507-23 , the issue related to whether or not a farm purchased by the deceased on which commercial farming activities were taking place constituted a matrimonial home for purposes of s3A of the Deceased Estate Succession Act [Chapter *6:02*].

As is clear from the offer letter to the deceased, what was allocated to her through the lease is an A2 model farm. A1 model farms pose no challenges because the issues of what happens at the death of the permit holder are covered in S.1 53/14- Agriculture Land Settlement [Permit Terms and Conditions] Regulations, 2014. Not so with A2 Farms. At the back of the offer letter that created the lease, there is an important endorsement. It reads, " *Conditions applying to the offer of land under the Zimbabwe Land Reform and Resettlement Programme(Phase 11) Model A2 Scheme.*

It goes on to state, " *Offer is subject to the following conditions".*

Condition 1(c) ii – states that in the event of death of the lessee, the rightful heir shall apply for succession. I agree with Mr. *Matapura* that this process cannot occur without an estate having been registered. However, this does not mean that the property becomes an estate asset. What it means is that the land still belongs to the state and there should be a process via the relevant authority for transfer of that land to the rightful heir. In my view, the conditions are steeped in the era of the male primogeniture rule where the eldest son inherited property. This has since been done away with. The applicant has not pleaded that such process has taken place.

I now turn to the Land Commission Act [Chapter *20:29*]. That act repealed the Agriculture Land Resettlement Act [Chapter *20:01*]. The offer to the deceased was made in terms of this repealed act. Section 65 of the Land Commission Act contains important transitional provisions as follows.

Repeal of Cap. 20:01 and Cap. 20:18; savings and transitional provisions

(1) Subject to this section, the Agricultural Land Settlement Act [Chapter 20:01] and Rural Land Act [Chapter 20:18] are repealed.

(2) Despite the repeal of the Agricultural Land Settlement Act [Chapter 20:01]—

> (a) any lease, permit, offer letter, agreement or transaction issued or entered into or deemed to have been issued or entered into under that Act, and in force immediately before the date of commencement of this Act, shall continue in force, and, in the case of any ninety-nine-year lease or permit, be entered in the Register without compliance with the formalities for registration under Part VIII;
>
> b. regulations made or deemed to have been made under that Act and in force immediately before the date of commencement of this Act, shall continue in force until amended, replaced or repealed in terms of this Act and shall be deemed to have been made in terms of this Act;
>
> (c) anything done, or commenced under that Act and which, immediately before the date of commencement of this Act, had or was capable of acquiring legal effect, shall be deemed, on or after that date, to have been made, done or commenced under the appropriate provision of this Act and shall continue to have or to be capable of acquiring, as the case may be, the same legal effect;
>
> (d) any dispute commenced or complaint lodged under that Act involving the terms or issuance of a lease, permit or offer letter to which the Agricultural Land Settlement Board or the Ministry was a party or of which it was an intermediary shall, if not resolved before the commencement of this Act, be referred to the Commission for settlement as a dispute or complaint in accordance with this act.

This act came into force on the 26th of February 2018. The deceased passed away on the 3rd of September 2020. This means that at the date of their death, the offer was now under the Land Commission Act. The fourth schedule to the act contains elaborate provisions on what should occur at the death of the lessee as follows.

4. Death or insanity of lessee

1. If a lessee **dies** or is detained as a mentally disordered or defective person under the laws relating to mental disorders or is, by order of a competent court, declared incapable of managing his or her own affairs, the legal representative of the lessee, including any person empowered by law to administer or to give directions as to the administration of his or her estate, may, subject to this paragraph, cede the lease to a **person approved by the Minister** or continue the lease on behalf of the estate **upon such terms and conditions as may be imposed by the Minister**.

2. Until the lease is ceded or during the period the legal representative continues the lease on behalf of the estate, as the case may be, the provisions of this Act applicable thereto and the conditions of the lease shall be fulfilled by the legal representative of the estate or on his or her behalf by a person nominated by him or her **and approved in writing by the Minister**.

What this means essentially is that all processes in relation to the land are subject to the approval of the Minister. The legal representative referred to is the executor of the estate. Although the conditions on the offer refer to an heir, in my view, this simply refers to the beneficiary or beneficiaries. The applicant has not pleaded that at the death of the deceased; the Minister was approached and what took place. In my view, the rights in the land which does not lose its character of state land remain 'suspended' until the executor takes steps to engage the relevant Minister. The latter has the full rights to decide what should happen to the land. If the application is considered from the perspective of an interdict, no clear right has been established or properly pleaded and the matter ends there. Even if I were to agree that the matter is one for a *declaratur*, the applicant cannot seek rights that have not yet been established through the correct legal process as envisaged in the Land Commission Act. Death becomes, 'her'. That this central issue has not been dealt with in relation to the A2 offer letter and simply treated as an automatic transmission of rights and title is unfortunate.

The respondents legal practitioners did not allude to the fact of death of the lessee and the legal consequences thereon. Ordinarily costs follow the cause. However, I will not award the respondent any costs as they did not raise the critical issues and wasted time on frivolous preliminary issues.

DISPOSITION

1. The application be and is hereby dismissed.
2. There shall be no order as to costs.

Mafongoya and Matapura, applicant's legal practitioners

Mahuni Magidiri Law Chambers, first to third respondent's legal practitioners.